

Plaintiff argues that Enterprise's police report generated both the Napa and Sonoma prosecutions, the Sonoma County dismissal was terminated in Plaintiff's favor, Enterprise's police report lacked probable cause and was made with malice. As discussed above, Plaintiff failed to make a prima facie showing that Enterprise's police report was made without probable cause or with malice, the second and third elements of a malicious prosecution claim. As such, Plaintiff has failed to establish a prima facie showing of probable likelihood to prevail on his malicious prosecution claim against Enterprise.

Based on the foregoing, the anti-SLAPP motion is GRANTED. The alternative demurrer is therefore MOOT.

D. ATTORNEYS' FEES

Enterprise argues that it is entitled to recover its attorney's fees and costs in connection with the Motion. The "prevailing defendant" on the motion to strike "shall be entitled" to recover the defendant's attorney fees and costs. (§ 425.16, subd. (c).) As Enterprise is the prevailing defendant on the present Motion, it is entitled to recover its attorney fees and costs. The Court does not herein determine the amount of reasonable attorney fees and costs to which it is entitled, as Enterprise states that it intends to bring a separately noticed motion thereon.

GUARDIANSHIP CALENDAR – Hon. Veronica Juarez, Dept. 6 (Criminal Courts Bldg. – 1111 Third St.) at 2:00 p.m.

Miriam Saucedo Martinez v. Sergio Ramirez Diaz

26FL000507

[1] PETITION TO ESTABLISH PARENTAL RELATIONSHIP

[2] REQUEST FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both matters are GRANTED.

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Guardianship of Camila Cardenas Valencia

26PR000102

[1] PETITION FOR APPOINTMENT OF GUARDIAN

[2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both Petitions are GRANTED. The Court has read and considered all reports submitted pursuant to Probate Code section 1513.

The matter is set for a Guardianship Review Hearing and Event for September 17, 2027, at 2:00 p.m. in Dept. 6. The guardian is advised that she will receive a blank Status Report (GC-

251 Form) in the mail in approximately 11 months that she will be required to complete and return to the Court. Timely filing of the form may result in the hearing being vacated.

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Guardianship of Yuri Anai Mendoza Guzman

26PR000112

- [1] PETITION FOR APPOINTMENT OF GUARDIAN
[2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: By Minute Order dated August 7, 2026, the Court directed Petitioner to, *inter alia*, submit a (Proposed) Order for Investigation of Relative Guardian(s) by Health & Human Services (HHS), Child Welfare Division (Local Form GU-3) and, once signed by the Court, serve the signed order on HHS and file a Proof of Service (POS) prior to the continued hearing.

The Form GU-3 Order was signed by this Court on August 17, 2026. However, there is no POS of that Order on HHS, nor is there a Screening Report by HHS, in the file. (Prob. Code, § 1516.)

Thus, both Petitions are again CONTINUED to October 16, 2026, at 2:00 p.m. in Dept. 6. If the foregoing defect is not cured prior to the next hearing, appearances will be required to explain the delay.

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Guardianship of Yaneth Irene Hurtado Lopez

26PR000125

- [1] PETITION FOR APPOINTMENT OF GUARDIAN
[2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both Petitions are CONTINUED to October 16, 2026, at 2:00 p.m. in Dept. 6 to allow Petitioner to remedy the following issues:

With respect to the Guardianship Petition,

1. There is no completed proof of personal service, with 15 days' notice, on ward's father. (Prob. Code, § 1511.) The Court notes the 9/10/26 Declaration of Due Diligence by Petitioner's counsel. However, to the extent Petitioner wishes to dispense with the notice requirement as to anyone entitled to notice, Petitioner must file a request to dispense with notice, and proposed order dispensing with notice.
2. There is no Health and Human Services (HHS) screening report in the file. (Prob. Code § 1516.) The Court notes that a proposed order to HHS (Local Form GU-3) has not been submitted for the Court's signature. Petitioner must submit the proposed order, serve the signed order on HHS, and file a Proof of Service on HHS prior to the continued hearing.
3. There is no Parental Notification of Indian Status (ICWA-020 Form) on file.